

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

FILED
2025 SEP -8 P 1:28

In the Matter of:
Al-mira Amira Jazmine Davis, a Child

Case No: 25JU04261

SHELTER ORDER
(ORS 419B.180 et seq.)

This matter came before the court on 09/08/2025

Persons appearing:

*Check box if party
appeared by video or phone*

Legal Father ☒ Al-quan Adam Davis	Attorney ☐ : Mols (at Washington County Jail)
Mother ☐ Ashle Antoinette Penn	Attorney ☐ : Mahoney (pending)
Child ☐ : Al-Mira	Attorney ☐ : Lhotsky
Tribe ☐ :	Tribal Atty/Rep. ☐ :
CASA ☐ :	Deputy D.A. ☐ : Williamson
Guardian ☐ :	Asst. Atty Gen'l ☐ : Rischiotto
ODHS Caseworker ☐ : Gallagher	Other ☐ :
Guardian Ad Litem ☐ :	Other ☐ :

ODHS DOCUMENTATION

The Department of Human Services (ODHS) ☒ did ☐ did not provide the court with the documentation required by ORS 419B.185

EVIDENCE CONSIDERED

- ☐ Stipulations by the parties
☒ The exhibits admitted by the court: State's 1 – Protective Custody Report; State's 2 – Fact Finding consisting of 207 pages; State's 3 – ODHS Assessment Summary consisting of 78 pages
☒ The testimony of the witnesses at the hearing
☐ The following facts/law, of which the court has taken judicial notice:
☐ Other:

Except where noted, the findings below are based on a preponderance of the evidence.

1. INDIAN CHILD WELFARE ACT (ICWA/ORICWA) FINDINGS

☒ ODHS **made** a good faith effort under ORICWA to determine whether the child is an Indian child

☐ ODHS **did not** make a good faith effort under ORICWA to determine whether the child is an Indian child and therefore the court does not have authority to place the child in substitute care (order protective custody).

At this time, the court does not have reason to know that ICWA/ORICWA applies. No individual present at the hearing knows or has reason to know the child is an "Indian Child" under ICWA/ORICWA, and no additional information has been presented that provides the court reason to know that ICWA/ORICWA applies. (Or Laws 2021, ch. 398, §14).

2. NOTICE FINDINGS

► Parties

☒ All parties ☒ were ☐ were not notified, and ODHS is ordered to make diligent efforts to notify the following of all future hearings:

☐ Mother ☐ Father ☐ Guardian was provided the notice of obligations and rights required by ORS 419B.117

► Foster Parents or Care Providers

☒ The child is in substitute care. ODHS ☒ **did** ☐ **did not** give the foster parents or current care providers notice of the hearing

☐ The foster parents or current care providers **did not attend** the hearing

☒ The foster parents or current care providers **attended** the hearing and had an opportunity to be heard

► Grandparents

☒ ODHS ☒ **made** ☐ **did not make** diligent efforts to identify, obtain contact information for, and notify all grandparents of the hearing.

☐ No grandparents attended the hearing, **or**

The following grandparents attended the hearing and had an opportunity to be heard:

Maternal:

☒ Grandmother ☐ Grandfather

Paternal:

☐ Grandmother ☐ Grandfather

☒ The grandparents who attended the hearing were informed of the date of a future hearing

☐ ODHS **did not** give the grandparents notice of the hearing because: ☐ a prior order relieved ODHS of the notice requirement **or** ☐ other:

☐ For good cause shown, the court relieves ODHS of the responsibility to provide notice of this hearing ☐ to all grandparents, ☐ to the following grandparents:

3. UCCJEA DETERMINATION

This court ☒ has ☐ does not have jurisdiction under the **UCCJEA** to make a child custody determination

4. REASONABLE EFFORTS FINDINGS

In light of the circumstances of the child and the parents, and having considered the child's health and safety to be the paramount concerns, and having considered whether placement of the child and referral to the Strengthening, Preserving and Reunifying Families Program is in the child's best interest, the court finds that:

► ☐ ODHS **has made** reasonable efforts to provide services and/or other support to prevent or eliminate the need for removal of the child from the home and to make it possible for the child to safely return home. The efforts to prevent removal/safely return the child home include:

☐ description of efforts is attached as Exhibit _____ and adopted as the court's written findings

► ☒ The court considers ODHS to have made reasonable efforts to prevent or eliminate the need for protective custody even though no services were provided because no services would have eliminated the need for protective custody

► ☐ ODHS **has not made** reasonable to provide services and/or other support to prevent or eliminate the need for removal and make it possible for the child to safely return home

5. IN-HOME PLACEMENT

☐ The court has considered the child's health and safety and whether the provision of reasonable services can prevent or eliminate the need to separate the family and finds that placement in the child's home is in the child's best interest and for the child's welfare.

6. PLACEMENT IN SUBSTITUTE CARE

<u>Substitute Care Determination</u>	
<u>NON-ICWA/ORICWA (COMPLETE THIS SECTION)</u>	<u>ICWA/ORICWA QUALIFIED (DO NOT USE)</u>
☒ The court has considered the child's health and safety and whether the provision of reasonable services can prevent or eliminate the need to separate the family and finds that the child cannot be safely returned home or maintained in the home without further danger of: ☒ suffering physical injury or emotional harm ☐ endangering or harming others ☒ not remaining within the reach of the court process prior to adjudication	☐ This court has temporary emergency removal or placement jurisdiction under 25 USC §1922 and ORS 419B.185. The court finds by a preponderance of evidence that removal is necessary to prevent imminent physical damage or harm to the child because :
THEREFORE placement or continuation in substitute care is in the child's best interest, as described in ORS 419B.612 and for the child's welfare (<i>provide additional reasons to support this finding</i>) :	

The court further finds that the selected placement ☒ **is** ☐ **is not** the least restrictive, most family-like setting that meets the health and safety needs of the child and in reasonable proximity to the child's home.

► DILIGENT EFFORTS

Relative Placement

☒ The child is in substitute care and ODHS ☒ has ☐ has not made diligent efforts to place the child with a relative, current caretaker (ORS 419A.004(12)), or person who has a caregiver relationship (ORS 419B.116) with the child, as required by ORS 419B.192.

☐ ODHS has decided to place the child with a relative, current caretaker, or person who has a caregiver relationship with the child but that placement is not in the child's best interest because:

Sibling Placement

☐ The child has one or more siblings and is in substitute care. ODHS ☐ has made ☐ has not made diligent efforts to place the child with a sibling as required by ORS 419B.192

☐ Placement together is not in the best interest of the child or sibling

► **Visitation Findings:**

7. **RESTRAINING ORDER FINDINGS**

☐ The court finds that the requirements for entry of a restraining order under ORS 419B.845 are satisfied in this case and that entry of a restraining order against is for the child's welfare and in the child's best interest

☐ The restraining order is attached

8. **SCHOOL OF ORIGIN**

☐ The court finds **it is** in the child's best interest to attend the child's school of origin

☐ The court finds **it is not** in the child's best interest to attend the child's school of origin or any other school in the child's district of origin

THE COURT ORDERS:

► **CASA:** ☒ CASA is appointed to represent the child

► **Attorneys:** ☒ Attorneys are appointed as follows:

Mother: Metropolitan Public Defender (pending)

Father: Hillsboro Law Group (at Washington County Jail)

Child: Ridehalgh and Associates

► **Temporary custody:**

☒ The child is placed in the temporary custody of **ODHS** for care, placement and supervision, under ORS 419B.809(5) ☒ in substitute care ☐ in home, subject to the following conditions:

☐ The child is placed in the custody of ☐ mother ☐ father ☐ guardian, subject to the following conditions:

☐ The child is placed in the temporary custody of:

► **ICWA**

Each party is required to inform the court immediately if the party receives information that provides reason to know the child is an "Indian Child." ODHS is ordered to continue its inquiry into whether the child is an "Indian Child" and report the results of the inquiry to the court.

► **Visitation:** ☒ The first visit must occur within ☐ 1 week ☐ 48 hours ☒ other: after consultation with the child
☐ Visits are not appropriate at this time
Additional requirements: court supports any criminal no contact order with father allow for contact per ODHS

The jurisdictional hearing will be held by (date):
or ☐ the court finds good cause to extend the 60-day deadline in ORS 419B.305 based on the following facts:

► **ODHS Disclosure of Records and Reports**

Under ORS 419A.255(4)(a)(C), the Court consents to the use and disclosure of records, reports, materials or documents in the record of the case or the supplemental confidential file by ODHS if such use and disclosure is reasonably necessary to perform its official duties related to the involvement of the child with the juvenile court.

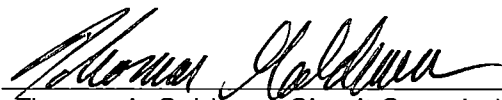
THIS CASE WILL NEXT BE REVIEWED:

Appearance Type:	Date:	Time:
By the court for initial appearance on:		
By the court for settlement conference on:	October 14, 2025	9:30 am
By the court for pretrial conference on:	October 14, 2025	10:00 am
By the court for trial on:	October 31, 2025	9:00 am
Readiness Appearance Set For:		
Other:	110L	

DOCKETED

All parties in attendance were notified of these court dates and are ordered to appear

September 8, 2025



Thomas A. Goldman, Circuit Court Judge Pro Tem

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of) Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,) SHELTER HEARING
A Child.)

THIS MATTER came before the Court on September 8, 2025, at 1:15pm.

Present at the hearing were:

Juvenile Counselor ODHS Victoria Gallagher, Nicole Bennett

Child(ren) / Youth OYA

Child(ren)/Youth's Attorney Ridehalgh & Associates L Lohky

Mother Ash Le' Antoinette Penn Mother's Attorney Cornerstone Law Group McChaney

Father Al-Quan Adam Davis Father's Attorney Hillsboro Law Group Mo's

Assistant Attorney General Nicholas Rischotto for Yazmin Wadia

CASA Julie Fong

Resource Parent(s) RP

Grandparent(s)

Other Williamson

SHELTER HEARING COVER SHEET